

GUARDIANSHIP OF GAEA CAIN

Case Number: 24PG-0032591

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minor Gaea Cain. The Petition was filed by non-relatives Audra and Alexander Siqueiros. Temporary Letters have not issued.

On September 23, 2024, the Court found that the matter had been properly noticed, however, the mother informed the Court that the minor may be an Indian child. The ICWA-010(A) and ICWA-030 forms were filed on October 1, 2024 and notice under ICWA was provided on the same date. No response has been received.

The Court has reviewed and considered the Children's Services report filed September 11, 2024 and agrees with the recommendation to grant the Petition. The Court **FINDS** it would be detrimental for the child to be with either parent or any parent objecting to the guardianship, the guardianship is in the child's best interest, and the guardianship is necessary and convenient. The proposed guardian is suitable.

The Court **GRANTS** the Petition. Visitation shall be at the Guardian's discretion. A proposed Order Appointing Guardian has been lodged and will be executed by the Court. Annual Review is set for **Monday, November 3, 2025 at 8:30 a.m. in Department 42.** **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF LOIS AND ELIZABETH ENGLAND

Case Number: CVPG16-0028844

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings regarding the guardianship of the minors Lois and Elizabeth England. On August 26, 2024, the Court suspended the guardianship held by Trudy Savage and Randy Savage (maternal grandmother and step-grandfather). Letters of Temporary Guardianship issued on October 3, 2024 and the Temporary Guardians are the minors' aunt and

uncle, Patricia Osborn and Sean Konu. The Temporary Letters are set to expire today unless otherwise extended.

The mother Shellie England filed a Petition for Termination on July 23, 2024. All necessary parties have been timely served with the exception of sibling Rebecca. Because Rebecca is under the age of 12, Rebecca may be served through the parent or guardian with whom she resides. Prob. Code § 1460.1. No objections have been filed. The Court has reviewed the Court Investigator's Report filed September 16, 2024 that recommends denying the Petition for Termination.

On October 2, 2024, the Temporary Guardians filed a Petition for Appointment of Successor Guardian and a Petition for Removal of Guardian. No proofs of service have been filed for either Petition. As to the Petition for Appointment of Successor Guardian, the Court will dispense with notice to the deceased maternal grandfather and deceased paternal grandmother. The mother, father, minor Lois, and former guardians must be personally served in order to proceed with the Petition. The paternal grandfather and siblings may be served by mail. For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Court will inquire whether the children are or may be Indian children. If Petitioners have reason to know that the children are Indian children, they must make further inquiry to learn about the children's Indian heritage. The Court has reviewed the Court Investigator's Report filed October 22, 2024 that recommends granting the Successor Petition as to Lois and denying as to Elizabeth. Given Successor Petition, the Petition for Removal will be placed in a trailing status.

As to Elizabeth only, the matter is referred to HHSA Children's Services Division pursuant to Prob. Code § 1513(b) to initiate an investigation pursuant to Welfare & Institutions Code § 329(b). The clerk is directed to serve Children's Services with a copy of today's minutes and the Court Investigator's Reports filed August 16, 2024, September 17, 2024, and October 22, 2024.

In light of the Court Investigator's recommendation to deny the Petition as to Elizabeth and the referral to Children's Services the Court will appoint the public defender to represent the minors.

The matter is continued to **Monday, December 9, 2024 at 8:30 a.m. in Department 42** for further proceedings on the Petition for Termination and Petition to Appoint Successor Guardian and for confirmation of minors' counsel. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioners are ordered to file and serve a new Notice of Hearing with the continued hearing date on the parties identified above. In the alternative, if Petitioners cannot serve the parties identified, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioners to locate and serve the parties identified, in order to permit the Court to dispense with notice to the party. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petitions. Notice is preserved. No appearance is necessary on today's calendar.**